II

This is not the first challenge to the constitutionality of § 54–524.35 and what is now its third-numbered phrase. Shortly after the phrase was added to the statute in 1968,[8] a suit seeking to enjoin its operation was instituted by a drug retailing company and one of its pharmacists. Although the First Amendment was invoked, the challenge appears to have been based primarily on the Due Process and Equal Protection Clauses of the Fourteenth Amendment. In any event, the prohibition on drug price advertising was upheld. *Patterson Drug Co.* v. *Kingery,* 305 F. Supp. 821 (WD Va. 1969). The three-judge court did find that the dispensation of prescription drugs "affects the public health, safety and welfare." *Id.,* at 824–825. No appeal was taken.

The present, and second, attack on the statute is one made not by one directly subject to its prohibition, that is, a pharmacist, but by prescription drug consumers who claim that they would greatly benefit if the prohibition were lifted and advertising freely allowed. The plaintiffs are an individual Virginia resident who suffers from diseases that require her to take prescription drugs on a daily basis,[9] and two nonprofit organizations.[10] Their

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[8] Theretofore an administrative regulation to the same effect had been outstanding. The Board, however, in 1967 was advised by the State Attorney General's office that the regulation was unauthorized. The challenged phrase was added to the statute the following year. See *Patterson Drug Co.* v. *Kingery,* 305 F. Supp. 821, 823 n. 1 (WD Va. 1969).

[9] Stipulation of Facts ¶ 3, App. 9.

[10] The organizations are the Virginia Citizens Consumer Council, Inc., and the Virginia State AFL–CIO. Each has a substantial membership (approximately 150,000 and 69,000, respectively) many of whom are users of prescription drugs. *Id.,* ¶¶ 1 and 2, App. 9. The American Association of Retired Persons and the National Retired Teachers Association, also claiming many members who "de-